

Court No. - 3

Case :- WRIT - C No. - 24191 of 2022

Petitioner :- Purvanchal Vidyut Vitaran Nigam Limited

Respondent :- Pulkit Yadav And Another

Counsel for Petitioner :- Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani,J.

Hon'ble Saurabh Srivastava,J.

None appears for the petitioner even in the revised call.

It is informed that today Advocates are abstaining from work.

Learned standing counsel is present and wants to argue.

Put up as a fresh case on 01.09.2022.

Order Date :- 25.8.2022

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Court No. - 29

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Respondent :- Pulkit Yadav And Another

Counsel for Petitioner :- Narendra Kumar Tiwari

Hon'ble Manoj Misra,J.

Hon'ble Vikas Budhwar,J.

The contention of the learned counsel for the petitioner is that the Electricity Consumer Grievance Redressal Forum on the complaint of the first respondent has not adverted to the core issue as to whether the bill raised on 30.11.2020 was lawful or in violation of the provisions of the U.P. Electricity Supply Code, 2005 or not. The submission is that without addressing the correctness of the said bill, no direction could have been issued for raising electricity bill on the basis of average reading in the Smart Meter w.e.f. 2015.

The matter requires consideration.

Let notice be issued to the Respondent no.1 fixing **17.10.2022**.

Steps to serve to Respondent no.1 shall be taken through registered speed post within three days from today.

In the meantime, the petitioner may abide by the order of the Forum without prejudice to its right to realize the bill dependent upon decision of this petition.

Order Date :- 13.9.2022

N.S.Rathour